



CHAPTER xxiv

An Act to confirm a Provisional Order made by the Minister of Transport under the Walsall Corporation Act 1925 relating to Walsall Corporation trolley vehicles.
[1st August 1951.]

WHEREAS under the authority of section seventeen of the 15 & 16 Geo. 5. Walsall Corporation Act 1925 the Minister of Transport c. cxxii. has made the Provisional Order set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act. Confirmation of Order in schedule.

2. This Act may be cited as the Walsall Corporation (Trolley Short title. Vehicles) Order Confirmation Act 1951.

SCHEDULE

WALSALL CORPORATION (TROLLEY VEHICLES)

Provisional Order authorising the mayor aldermen and burgesses of the borough of Walsall to use trolley vehicles upon additional routes in the said borough.

Short and
collective titles.

1.—(1) This Order may be cited as the Walsall Corporation (Trolley Vehicles) Order 1951.

(2) The Walsall Corporation (Trolley Vehicles) Acts and Order 1914 to 1937 and this Order may be cited together as the Walsall Corporation (Trolley Vehicles) Acts and Orders 1914 to 1951.

Interpretation.

2. In this Order the following expressions have the meanings hereby assigned to them respectively (that is to say):—

“The borough” means the borough of Walsall;

“The Corporation” means the mayor aldermen and burgesses of the borough;

4 & 5 Geo. 5.
c. clx.
15 & 16 Geo. 5.
c. cxxii.

“The Act of 1914” and “the Act of 1925” mean respectively the Walsall Corporation Act 1914 and the Walsall Corporation Act 1925;

“Trolley vehicle” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1925;

“The Minister” means the Minister of Transport.

Power to use
trolley vehicles
upon certain
routes.

3. Subject to the provisions of this Order and of the Act of 1925 so far as such provisions relate to trolley vehicles and trolley vehicle routes and are applicable to this Order the Corporation may use trolley vehicles upon the following routes in the borough in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say):—

Route No. 1 (6½ chains or thereabouts in length) commencing at the junction of Townend Street with Wolverhampton Street proceeding along Townend Street to its junction with Green Lane thence along Green Lane to Townend Bank thence along Townend Bank to its junction with Wolverhampton Street;

Route No. 2 (15½ chains or thereabouts in length) commencing at the junction of Stafford Street and St. Paul's Street proceeding along St. Paul's Street across Wisemore to the junction of St. Paul's Street and Darwall Street;

Route No. 3 (10 chains or thereabouts in length) commencing at the junction of Park Road and High Street proceeding along Park Road to its junction with Lichfield Road thence along Lichfield Road to its junction with High Street Bell Lane and Stafford Road:

Provided that subsection (2) (d) of section 38 (For protection of Postmaster-General) of the Act of 1914 shall be read and have effect as if the words “generated or used by or supplied to” were inserted in that subsection in substitution for the words “generated by”:

Provided further that section 60 (For the protection of the Midland Railway Company) of the Act of 1914 shall extend and apply to the trolley vehicle routes hereby authorised as if the British Transport Commission were named therein instead of the Midland Railway Company.

4. If the Corporation shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister may upon the application of the Corporation allow the powers conferred by this Order shall so far as they relate to the use of trolley vehicles upon any route upon which the Corporation shall not have commenced to use trolley vehicles cease to be exercisable. Period for completion of trolley vehicle equipment.

5. All regulations and byelaws relating to the trolley vehicles authorised by the Act of 1914 and the Act of 1925 and made in pursuance of those Acts or either of them or any other statutory enactment shall with any necessary modifications apply to the trolley vehicles used by the Corporation in pursuance of this Order. Application of byelaws.

6. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Order and section 290 of the Local Government Act 1933 shall apply accordingly. Inquiries by Minister.
23 & 24 Geo. 5.
c. 51.

7. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.
10 & 11 Geo. 6.
c. 51.

8. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Order.

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